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Case Number: 22NWCV01597 Hearing Date: September 18, 2026 Dept: D

MARIA AVINA JACOBO, ET AL. V. AMERICAN HONDA MOTOR CO., INC.

CASE NO.: 22NWCV01597

HEARING: 09/18/2026 @ 9:30 a.m.

#13

TENTATIVE ORDER

Plaintiffs Maria Avina Jacobo and Alfredo Lopez Gomez's motion for attorney's fees is GRANTED.

Defendant American Honda Motor Co. Inc.'s motion to strike, or in the alternative, tax the memorandum of costs filed by Plaintiffs Maria Avina Jacobo and Alfredo Lopez Gomez is DENIED.

Defendant American Honda Motor Co. Inc. is ordered to pay the awarded amount within 30 days of this Order.

Moving parties to give notice.

Plaintiffs Maria Avina Jacobo and Alfredo Lopez Gomez (collectively, Plaintiffs) move for an order awarding attorneys' fees, costs, and expenses in the amount of \$70,030.62.

Defendant American Honda Motor Co. Inc. (Defendant) moves to strike the memorandum of costs filed by Plaintiffs, or in the alternative, tax costs.

Background

This is a lemon law action. On December 14, 2022, Plaintiffs filed the operative complaint against Defendant and Does 1 through 10, inclusive, asserting one cause of action for Violation of Song-Beverly Act—Breach of Express Warranty.

Motion for Attorney's Fees

If a buyer-plaintiff prevails in an action under Civil Code section 1794, "the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorneys' fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794 (d).)¿

Here, it is undisputed that Plaintiffs are the prevailing parties in this action and are entitled to reasonable attorneys' fees. The only issue pending before this court is the amount of the award.

Reasonableness of Hourly Rate

Plaintiffs' counsel requests the following hourly rates:

- Colby Meagle: \$450 (2026)
- Deepak Devabose: \$450 (2024)
- Debra Reed: \$495 (2023)
- Elvira Kamosko: \$350 (2024)
- Harita Nandivada: \$375 (2024); \$400 (2025)
- Jacob Cutler: \$550 (2025)
- Keishunn Johnson: \$375 (2025)

- Marisa Melero: \$395 (2023)
- Russell Higgins: \$600 (2025)
- Summer Smith: \$575 (2024)
- Sundeep Samra: \$400 (2024); \$450 (2025)
- Timothy Lupinek: \$415 (2023); \$450 (2024); \$500 (2025)
- Thach Tran: \$425 (2024)
- Stephanie Rosado: \$295 (2024)
- Diana Folia (Paralegal): \$250 (2026)

(Motion p. 10, Kimos Decl., ¶ 2, Ex. A.)

The matter of reasonableness of a party's attorney fees is within the sound discretion of the trial court. (Bruckman v. Parliament Escrow Co. (1989) 190 Cal.App.3d 1051, 1062.) ¿Normally, a "reasonable" hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (PLCM Group, Inc. v. Drexler¿(2000) 22 Cal.4th 1084, 1095.) That amount may then be adjusted through the consideration of various factors, including "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, and (4) the contingent nature of the fee award." (Ketchum v. Moses¿(2001) 24 Cal.4th 1122, 1132.)

In opposition, Defendant argues that Plaintiffs have failed to establish that the requested hourly rates are reasonable for a routine, non-complex Song-Beverly action. (Opp. pp. 11-13.) Defendant contends that Plaintiffs rely on inflated and unverified rates drawn largely from contingency fee counsel, without evidence that clients actually pay those rates for comparable non-contingent lemon law work in Los Angeles County. (Ibid.)

Defendant additionally relies on *Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240 (*Mikhaeilpoor*) and *Hernandez v. FCA US LLC* (C.D. Cal. Jan. 4, 2019) 2019 WL 2932637, arguing that lower rates have been found reasonable in comparable consumer cases. (*Opp.*, pp. 12-13.)

In reply, Plaintiffs argue that Defendant has not rebutted the reasonableness of the requested hourly rates because Plaintiffs submitted evidence of prevailing rates in Los Angeles lemon law cases, including declarations and prior fee awards approving comparable rates. (*Reply* pp. 7-9.)

The Court finds that Plaintiffs have shown that their requested hourly rates reflect the prevailing market rates for attorneys of comparable skill and experience in the relevant community. Plaintiffs' attorneys take cases on a contingency and, unlike defense counsel who work for large companies, there is no guarantee that Plaintiffs' attorneys will get paid when they agree to take a case. It is not unreasonable that the hourly rates for plaintiffs' lemon law attorneys are higher than the hourly rates for defense counsel in certain circumstances.

Accordingly, the Court concludes that Plaintiffs' requested rates are reasonable.

Reasonableness of Hours Billed

The trial court has an obligation to award only those attorneys' fees that are reasonable. (See *PLCM Group v. Drexler*, (2000) 22 Cal.4th 1084, 1096; see also *Ketchum v. Moses*, (2001) 24 Cal.4th 1122, 1132 (*Ketchum*).)

Although a verified fee bill is "prima facie evidence the costs, expenses and services listed were necessarily incurred," (*Hadley v. Krepel* (1985) 167 Cal.App.3d 677, 682), counsel still has the burden to demonstrate the reasonableness of charges. (*Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 247.)

Plaintiffs seek an award of attorney's fees based on 91 hours of billed time, resulting in a lodestar of \$38,666.00, and request a 1.5 lodestar multiplier for a total fee award of \$57,999.00. (*Kirnos Decl.*, ¶¶ 2-3, Ex. A.)

The Court has reviewed and considered Plaintiffs' counsel's attached billing records, together with Defendant's objections to the reasonableness of certain billing entries.

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Counsel billed 6.5 hours

on April 30, 2024, to attend Plaintiff Maria Lopez's deposition. Defendant submits that the deposition commenced at 11:07 a.m. and concluded at 3:17 p.m., for a total of approximately 4.2 hours. Plaintiffs do not explain the additional 2.3 hours included in the billing entry. Accordingly, the Court finds that 4.2 hours was reasonably necessary and will strike 2.3 hours.

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Counsel billed 3.0 hours

on May 8, 2024, for travel to and from the vehicle inspection. Plaintiffs do not provide evidence regarding the distance traveled or otherwise explain why three hours of travel was reasonably necessary. The Court finds that 1.5 hours was reasonably necessary for travel and will strike 1.5 hours.

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Plaintiffs' paralegal

billed a total of 8.8 hours between December 30, 2024 and January 2, 2025, in connection with preparation of trial exhibits and the exhibit list. Although Plaintiffs persuasively argue that preparation of trial exhibits requires substantive review and analysis, the entries also include clerical tasks. The Court therefore finds a reduction warranted and will strike 2.0 hours.

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Counsel billed 0.8 hours

on March 20, 2025, to prepare notes following Plaintiffs' expert's deposition after billing 4.4 hours to attend the deposition. Plaintiffs do not specifically explain why 0.8 additional hours was necessary. The Court finds that 0.5 hours was reasonably necessary and will strike 0.3 hours.

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Counsel billed 0.1 hour

on April 29, 2025, for communication concerning an unpaid expert invoice. The Court finds this entry administrative in nature and will strike 0.1 hour.

(Kirnos Decl., ¶¶
2-3, Ex. A; Opp., pp. 15-18.)

Overbilling, Block Billing, and Excessive Time

The Court has considered Defendant's arguments regarding alleged block billing, excessive internal communications, overstaffing, excessive time devoted to discovery and deposition preparation, use of form or template documents, trial preparation, and administrative or clerical work. Defendant contends that Plaintiffs' use of multiple timekeepers resulted in duplicative work and inefficiencies and that counsel billed excessive time for routine Song-Beverly tasks. (Opp., pp. 9-10, 14-18.)

Plaintiffs respond that counsel's use of attorneys who specialize in particular stages of litigation increased efficiency, that the challenged internal communications involved modest amounts of time and legitimate litigation strategy, and that the use of templates reduced rather than increased the time billed. (Reply, pp. 9-11.) Plaintiffs further explain that the challenged discovery, deposition, and trial-preparation entries required case-specific review and analysis. (Id. at p. 11.)

The Court finds that, except for the specific reductions identified above, the challenged entries are sufficiently related to the litigation, reasonably documented, and not excessive under the circumstances. Accordingly, the Court declines to make any further deductions from the requested fees.

Section 998

Offer

Defendant argues that the February 2023 offer provided Plaintiffs the option of a \$46,000 repurchase, a statutory repurchase in an amount to be proven, or \$20,000 with Plaintiffs retaining the vehicle, together with either \$10,000 in attorney's fees and costs or fees and costs determined by motion. (Opp., pp. 6-8.) Plaintiffs rejected the offer on April 10, 2023 and continued litigating the action for approximately two years before ultimately accepting Defendant's later section 998 offer providing for a \$46,000 repurchase and reasonable attorney's fees and costs to be determined by motion. (Ibid.) Relying on *Reck v. FCA US LLC* (2021) 64 Cal.App.5th 682 (Reck), Defendant acknowledges that the Court may not

categorically cut off all fees incurred after the February 2023 offer, but argues that Reck permits the Court to consider the reasonableness of the rejected offer in relation to the result ultimately obtained and to evaluate whether Plaintiffs' manner of prosecuting the action thereafter resulted in overstaffing, excessive time, or otherwise unreasonable fees. (Id. at pp. 7-8.)

In reply, Plaintiffs argue that Defendant's February 2, 2023 section 998 offer was invalid because it contained multiple alternative options, including an unspecified statutory-repurchase amount that could not be determined when the offer was made. (Reply, pp. 1-7.) Relying principally on *Duff v. Jaguar Land Rover North America, LLC* (2022) 74 Cal.App.5th 491, Plaintiffs contend that the offer created an impermissible "moving target" and was insufficiently certain to permit Plaintiffs or the Court to determine whether a subsequent recovery was more favorable. (Id. at pp. 1-6.)

Supplemental Briefing

At oral argument at the initial hearing on August 13, 2026, Defendants argued that the recent California Supreme Court decision, *Gorobets v. Jaguar Land Rover North America, LLC* (2026) 20 Cal. 5th 501, 519 ("Gorobets") impacts the Court's decision in this matter. The Court ordered that supplemental briefing be filed regarding the applicability of the *Gorobets* decision and continued the hearing until September 18, 2026. On August 21, 2026, Plaintiffs filed their supplemental brief. On August 27, 2026, Defendants filed their supplemental brief.

In their supplemental brief, Plaintiffs argue that the *Gorobets* decision does not affect this Court's ruling as the Court in *Gorobets* was presented with a narrow question: "The specific question in this case is whether a single 998 offer that presents two independent and alternative sets of terms and grants the offeree the right to accept by choosing between them is categorically nonconformity because an offer structured in that way lacks sufficient certainty." (Id. at *1.) In response to that question, *Gorobets* held that "a statutory offer of compromise presenting an offeree with a choice between two alternative sets of terms is not categorically barred by section 998." (Id. at *13.) Thus, Defendant's Honda's initial 998 offer that contained multiple options is not invalid as a matter of law. However, *Gorobets* has no impact on the last offer rule (in which a later 998 offer extinguishes an earlier 998 offer served by the same party), and Honda has already conceded

that its first offer did not cut off fees as a matter of law for reasons having nothing to do with its validity.

In their supplemental brief, Defendants argue that Plaintiffs should not recover costs and fees after the February 2, 2023 initial 998 offer because Gorobets holds plaintiff was not entitled to post-offer costs because he rejected its valid 998 offer and then failed to achieve a more favorable outcome, the initial offer was valid and limited plaintiff to his pre-offer costs and attorney fees. (Gorobets v. Jaguar Land Rover N. Am., LLC, No. S287946, 2026 WL 2267423, at *2-3 (Cal. Aug. 6, 2026).)

Discussion

Plaintiffs argue that the 2023 initial 998 offer was invalid and that Plaintiff is entitled to attorney fees as a prevailing party. However, Defendants argue that the initial 998 offer was not only valid, but because Plaintiff failed to obtain ultimately a better result, this Court must disallow Plaintiff's costs after the 2023 offer.

Defendant originally did not contend that section 998 operates to categorically bar Plaintiffs from recovering fees incurred after the offer. In its opposition to Plaintiff's motion for attorney fees, Defendant relied on Reck in asking the Court to consider the offer and Plaintiffs' subsequent litigation conduct as factors in determining whether the fees sought were reasonably incurred. In Reck, the Court of Appeal held that a trial court may not categorically deny or reduce post-offer attorney's fees based on a plaintiff's refusal to accept a section 998 offer where the plaintiff ultimately obtains a more favorable recovery. (Reck, supra, 64 Cal.App.5th at 693, 699-700.) However, Reck also recognized that a trial court may consider the reasonableness of a rejected section 998 offer in relation to the result ultimately obtained and may evaluate whether the manner in which the plaintiff prosecuted the action thereafter resulted in overstaffing, excessive time, or otherwise unreasonable fees. (Id. at 699-700.) In subsequent briefing, Defendant argues that there has been a change in law which allows the court to cut off attorney's fees and costs for a prevailing buyer.

Recently, in Gorobets v. Jaguar Land Rover North America, LLC (2026) 20 Cal. 5th 501, the California Supreme Court rejected the Court of Appeal's conclusion that alternative-choice offers are inherently uncertain, making them categorically prohibited by section 998. The Court stated,

“The specific question in this case is whether a single 998 offer that presents two independent and alternative sets of terms and grants the offeree the right to accept by choosing between them is categorically nonconforming because an offer structured in that way lacks sufficient certainty. (2) We hold that such a 998 offer can be valid so long as (1) the offer is structured so that it clearly presents the alternatives available to the offeree, and (2) at least one of the two independent sets of terms is sufficiently certain to permit an accurate valuation at the time the offer is made. Once validity is established, the court must determine whether section 998 cost shifting has been triggered by asking whether the party who rejected the 998 offer “fail[ed] to obtain a more favorable judgment or award” than the highest value, valid alternative proposed. (Id., subds. (c)(1), (d), (e).)”

(Gorobets v. Jaguar Land Rover North America, LLC (2026) 20 Cal. 5th 501, 512.)

From the plain language of Gorobets, it appears that Plaintiff’s argument that the initial 998 offer in this case was categorically invalid because it contained alternatives is no longer viable. Plaintiffs argue that Defendant’s February 2, 2023 section 998 offer was actually invalid because it contained multiple alternative options, including an unspecified statutory-repurchase amount that could not be determined when the offer was made. (Reply, pp. 1-7.) Relying principally on Duff v. Jaguar Land Rover North America, LLC (2022) 74 Cal.App.5th 491, Plaintiffs contend that the offer created an impermissible “moving target” and was insufficiently certain to permit Plaintiffs or the Court to determine whether a subsequent recovery was more favorable. (Id. at pp. 1-6.) However, Defendants argue that their first 998 offer does offer certainty in that it is structured, as required by Gorobets, in a way that is sufficiently certain to permit valuation at the time the offer was made and whether that value was higher than the award ultimately achieved especially for a firm like KLG claiming such expertise in this area. (Suppl. Brief, p. 3, Ins 23-25.)

However, it would be inequitable to apply Gorobets to the initial offer in this case, as at the time Plaintiff considered the initial 998 offer in 2023, Gorobets was not part of the risk calculation for Plaintiff. At the time, the initial offer was considered uncertain, and before Gorobets, indeed Defendant conceded that “the Court cannot cut off fees from the First 998 Offer.” (Defendant’s Opposition to Motion for

Attorneys' Fees, p. 8, ln. 16-17.) As Gorobets held, "[t]his incentive structure [of the 998 offer] only works, however, if an offer's worth can be reasonably calculated when it is being considered by the offeree, as well as in hindsight when the trial court compares the value of a rejected offer and the ultimate judgment or award." (Gorobets v. Jaguar Land Rover North America, LLC, 20 Cal. 5th 501, 519-520.) This Court does not consider whether Gorobets should be retroactively applied, only that principles of equity and the statutory scheme as interpreted in Gorobets would not apply the change in the law to this 2023 initial 998 offer.

Finally, as in the previous analysis by this Court, Reck does not preclude the Court from considering the earlier offer as one factor in assessing whether the fees incurred thereafter were reasonably necessary. The relevant inquiry remains whether the fees incurred after the offer were reasonable considering the way the litigation proceeded. The Court has reviewed Plaintiffs' billing records and, as set forth above, has reduced those entries it finds excessive, duplicative, administrative, or otherwise unreasonable.

Lodestar Multiplier

The Court declines to apply a lodestar multiplier. While Plaintiffs' counsel undertook the representation on a contingent basis, the contingency risk in this matter does not warrant an enhancement. The risk of nonpayment was mitigated by the Song-Beverly Consumer Warranty Act's mandatory fee-shifting provision, which provides prevailing plaintiffs with a statutory right to recover reasonable attorney's fees and costs. Moreover, this was a relatively routine lemon law action that did not present novel or particularly complex legal issues. The matter resolved through settlement before trial, and Plaintiffs have not demonstrated that counsel faced an exceptional risk of nonrecovery or that the lodestar amount fails to adequately compensate counsel for the work performed.

Accordingly, the Court strikes a total of 6.2 hours from Plaintiffs' fee request, resulting in a reduction of \$2,082.50. The Court therefore awards Plaintiffs' attorney's fees in the amount of \$36,583.50.

Motion to Strike or Tax Plaintiffs' Memorandum of Costs

A prevailing party

is entitled to recover costs, including attorneys' fees, as a matter of right, except as otherwise expressly provided by statute. (See Code Civ. Proc., §§ 1032, subd. (a)(4), 1032, subd. (b), 1033.5.)

It is undisputed

that Plaintiffs are the prevailing parties.

"A 'verified

memorandum of costs is prima facie evidence of [the] propriety' of the items listed on it, and the burden is on the party challenging these costs to demonstrate that they were not reasonable or necessary." (Adams v. Ford Motor Co. (2011) 199 Cal.App.4th 1475, 1486-1487 [italics and brackets omitted].) Costs otherwise allowable as a matter of right may be disallowed if the court determines they were not reasonably necessary, and the court has power to reduce the amount of any cost item to an amount that is reasonable. (See Perko's Enterprises, Inc. v. RRNS Enterprises (1992) 4 Cal.App.4th 238, 245 [finding that "the intent and effect of section 1033.5, subdivision (c)(2) is to authorize a trial court to disallow recovery of costs, including filing fees, when it determines the costs were incurred unnecessarily"].)

Code of Civil

Procedure section 1033.5 sets forth the items of costs which may or not be recoverable in a civil action.

In a lemon law

action, as here, Civil Code section 1794, subdivision (d) provides that a prevailing buyer "shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses . . . determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."

Civil Code section

1794, subdivision (d) "permits the prevailing buyer to recover both 'costs' and 'expenses.' Examining the language of the statute [citation], it is clear the Legislature intended the word 'expenses' to cover items not included in the detailed statutory definition of 'costs.'" (Jensen v. BMW of North America, Inc. (1995) 35 Cal.App.4th 112, 137, as modified on denial of reh'g (June 22, 1995).) The Legislature

included awards of “costs and expenses” in the statute “to cover such out-of-pocket expenses as filing fees, expert witness fees, marshal’s fees, etc.” (Id. at 138, quoting Assem. Com. on Labor, Employment & Consumer Affairs, Analysis of Assem. Bill No. 3374 (May 24, 1978) at 2.)

Section 998 Offer

As discussed above in connection with Plaintiffs’ motion for attorney’s fees, the Court has considered Defendant’s February 2023 section 998 offer in evaluating the reasonableness of the fees and expenses incurred in this action. The Court declined to treat Plaintiffs’ rejection of that offer as an automatic cutoff of all subsequent fees and instead evaluated whether the amounts incurred thereafter were reasonably necessary considering the manner in which the litigation proceeded. For the same reasons, the Court would decline to categorically disallow all post-offer costs solely because Plaintiffs did not accept the February 2023 offer.

Defendant’s Objections

Defendant objects to the following costs:

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\$341.10:

Service of Process

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\$5,795.13:

Expert Witness Fees for George Magana

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\$548.03:

Attorney Services and Messenger Court Filings and Service

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\$65.00:

Court Appearance Professionals

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\$75.00:

Travel Expenses

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\$10.00:

Minute Orders

The Court declines to tax Plaintiffs' claimed service-of-process costs, attorney service and messenger fees, court appearance professional fee, travel expenses, and minute-order charges. Plaintiffs have provided supporting information demonstrating that these expenses were incurred in connection with the prosecution of this action, and Defendant has not shown that they were unreasonable or unnecessary. (Code Civ. Proc., § 1033.5, subd. (c)(2), (4); Civ. Code, § 1794, subd. (d).)

As to the expert witness fees, Plaintiffs submitted itemized invoices showing that George Magana prepared for and attended Defendant's inspection of the subject vehicle, transported the vehicle to and from the inspection, and prepared for his deposition noticed by Defendant. (Opp., pp. 6-7.) Plaintiffs further explain that Magana's participation was necessary to evaluate the vehicle's alleged defects and to respond to Defendant's expert evidence. Accordingly, the Court finds that Plaintiffs have established that the expert witness fees were reasonably incurred in connection with the prosecution of this action.

Under Civil Code section 1794, subdivision (d), a prevailing buyer may recover litigation expenses reasonably incurred in connection with the action, even where such expenses would not otherwise be recoverable under Code of Civil Procedure section 1033.5. (Jensen v. BMW of North America, Inc. (1995) 35 Cal.App.4th 112, 137-138; see also Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 42-43.) Because Defendant has not demonstrated that any of the challenged costs were unreasonable or unnecessary, the Court declines to tax the requested costs.

Therefore, Defendant's Motion to Tax Costs is DENIED.

Conclusion

Based on the foregoing, Plaintiffs Maria Avina Jacobo and Alfredo Lopez Gomez's motion for attorney's fees is GRANTED.

Defendant American Honda Motor Co. Inc.'s motion to strike, or in the

alternative, tax the memorandum of costs filed by Plaintiffs Maria Avina Jacobo and Alfredo Lopez Gomez is DENIED.

The Court awards Plaintiffs' attorney's fees in the reduced amount of \$36,583.50 and costs in the amount of \$12,031.62, for a total award of \$48,615.12.

Defendant American Honda Motor Co. Inc. is ordered to pay the awarded amount within 90 days of this Order.